

DATA PROCESSING AGREEMENT

This Data Processing Agreement (“**DPA**”), dated as of the date set out in the Agreement (as defined below), is entered into by and between Customer acting on behalf of itself and its affiliates, and Cerebras Systems Inc., acting on behalf of itself and its affiliates, including its directly or indirectly controlled subsidiaries (“**Cerebras**”) (each a “**Party**” and together the “**Parties**”). This DPA is subject to and made a part of the enterprise agreement to which this DPA is attached (the “**Agreement**”) and the Parties’ execution of the Agreement (including an associated Order Form) executes this DPA.

- 1 Definitions.** In this DPA, the following terms shall have the meanings set out below and cognate terms shall be construed accordingly. Capitalized terms used but not defined in this DPA have the meanings given to them in the Agreement.
 - 1.1 “Applicable Laws”** means all statutes, laws, rules, regulations, ordinances, and the like of any federal, international, city, state, provincial, or local government or governmental agency applicable to the subject matter of this DPA including without limitation Data Protection Laws.
 - 1.2 “CCPA”** means Cal. Civ. Code Title 1.81.5, § 1798.100 et seq. (California Consumer Privacy Act), as amended from time to time, and regulations issued thereunder.
 - 1.3 “Controller”** means the entity that determines, whether alone or jointly with another, the purposes and means of the Processing of Personal Data. “Controller” includes a “business” (as that term is defined in the CCPA), controller (as that term is defined in the GDPR), and equivalent terms in Data Protection Laws, as context requires.
 - 1.4 “Customer Personal Data”** means Personal Data, regardless of format, that Cerebras receives from Customer or if applicable, its Third Party End Customers, or otherwise collects on Customer’s behalf pursuant to the Customer Agreement.
 - 1.5 “Data Breach”** means an actual breach of Cerebras’ security safeguards that results in the unlawful destruction, loss, alteration, unauthorized disclosure of, or access to Customer or if applicable, its Third Party End Customer’s Personal Data, transmitted, stored, or otherwise processed by Cerebras or its Sub-processors.
 - 1.6 “Data Protection Laws”** means all applicable laws, rules, regulations, decrees, statutes, or other enactments, orders, mandates, directives, or resolutions, governing the collection, use, storage, processing, transmission, transfer (including cross-border transfers), disclosure and protection of Customer Personal Data, including GDPR, the Privacy and Electronic Communications Directive 2002/58/EC, the UK Data Protection Act 2018, and the Privacy and Electronic Communications Regulations 2003, CCPA and similar state comprehensive data protection laws, as applicable, and any implementing, derivative or related legislation, rule, and regulation, solely to the extent applicable to Cerebras’ Processing of Personal Data under the Agreement.
 - 1.7 “Data Subject”** means an identified or identifiable natural person, or as otherwise defined (including under similar terms such as “consumer”) under Data Protection Laws. An identifiable natural person is one who can be identified, directly or indirectly, in particular by referencing an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.
 - 1.8 “GDPR”** means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to processing of personal data and the free

movement of that data and, with respect to the United Kingdom, the same as transposed, as amended, into UK law.

- 1.9** **“Personal Data”** means (i) any information that identifies, relates to, describes, is reasonably capable of being associated with or could reasonably be linked, directly or indirectly, with a Data Subject, device or household, and (ii) any other data or information that constitutes personal data, personal information or a similar term under any Data Protection Law, in each case of (i) and (ii), limited to data or information Processed by Cerebras under the Agreement.
- 1.10** **“Process,” “Processed,” or “Processing”** means any operation or set of operations that is performed on Personal Data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment or combination, restriction, erasure, or destruction.
- 1.11** **“Processor”** means an entity that Processes Personal Data on behalf of another entity. “Processor” includes “service provider” (as that term is defined in the CCPA), “contractor” (as that term is defined in the CCPA), “processor” (as that term is defined in the GDPR), and equivalent terms in Data Protection Laws, as context requires.
- 1.12** **“Sell” or “Selling”** means selling, renting, releasing, disclosing, disseminating, making available, transferring, or otherwise communicating orally, in writing, or by electronic or other means, Personal Data to another for monetary or other valuable consideration.
- 1.13** **“Sensitive Personal Data”** means Personal Data that is designated as a sensitive or special category of Personal Data, or otherwise subject to additional restrictions under Data Protection Laws.
- 1.14** **“Services”** means all services provided by Cerebras under the Agreement.
- 1.15** **“Share” or “Sharing”** means sharing, renting, releasing, disclosing, disseminating, making available, transferring, or otherwise communicating orally, in writing, or by electronic or other means, Personal Data to another for cross-context behavioral advertising (as that term is defined in the CCPA), whether or not for monetary or other valuable consideration.
- 1.16** **“Contractual Clauses”** means the European Union standard contractual clauses for international transfers from the European Economic Area to third countries, provided for in Commission Implementing Decision (EU) 2021/914 of 4 June 2021, specifically Module 1 and Module 2 as applicable in the context.
- 1.17** **“Sub-processor”** means any person or entity engaged by a Processor to Process Personal Data on behalf of a Controller.
- 1.18** **“Systems”** means any hardware, software, networks, or other information technology resources used by Cerebras to Process Customer Personal Data.
- 1.19** **“Third Country”** means (i) in relation to Personal Data transfers subject to the EU GDPR, any country or territory outside of the scope of the data protection laws of the European Economic Area, excluding countries or territories approved as providing adequate protection for Personal Data by the European Commission from time to time; and (ii) in relation to Personal Data transfers subject to the UK GDPR, any country or territory outside of the scope of the data protection laws of the UK, excluding countries or territories approved as providing adequate protection for Personal Data by the relevant competent authority of the UK from time to time.
- 1.20** **“Third Party End Customer”** means enterprise users or other users who access the Services through Customer, including users who purchase access to the Services from Customer.
- 1.21** **“UK Addendum”** means the International Data Transfer Addendum to the EU Commission Standard Contractual Clauses issued by the UK’s Information Commissioner’s Office under S119A(1) Data Protection Act 2018, as modified by the Information Commissioner’s office from time to time hardware.

2 Roles of the Parties

- 2.1 Roles of the Parties.** The Parties acknowledge and agree that with respect to Processing of Customer Personal Data, Customer acts as a Controller or if applicable, Processor to its Third Party End Customers and Cerebras acts as a Processor, or if applicable, Sub-processor to Customer.

3 Processing Obligations

- 3.1 Customer Obligations.** Customer represents and warrants that it:

- 3.1.1 is independently responsible for compliance and will comply with applicable Data Protection Law, including with respect to any applicable Customer or Third Party End Customer obligations to provide notices to and/or obtain consents from any Data Subjects to enable Cerebras to Process Customer Personal Data in compliance with applicable Data Protection Law;
- 3.1.2 will notify Cerebras if it makes a determination that the Processing of Personal Data pursuant to the Agreement does not comply with applicable Data Protection Law, in which case Cerebras will not be required to continue Processing such Personal Data;
- 3.1.3 will, to the extent required for information to be maintained as “Pseudonymous Data” or a similar term under applicable Data Protection Laws, keep Pseudonymous Data separate from any additional information necessary to make such Pseudonymous Data attributable to a specific Data Subject and subject such Pseudonymous Data to appropriate technical and organizational measures to ensure that it is not attributed to a specific Data Subject; and
- 3.1.4 will, to the extent required for information to be maintained as “De-identified Data” or a similar term under applicable Data Protection Laws, (i) take reasonable measures to ensure that De-identified Data cannot be associated with a specific Data Subject or household, (ii) publicly commit to maintain the De-identified Data in de-identified form and not attempt to reidentify it, and (iii) contractually commit any recipients to do the same.

- 3.2 Cerebras Obligations.** In connection with its obligations as a Processor, or if applicable, as a Sub-processor, Cerebras:

- 3.2.1 will comply with applicable Data Protection Law, including providing the same level of privacy protection as required of Customer of the applicable Customer Personal Data;
- 3.2.2 will not: (i) Sell or Share Customer Personal Data; (ii) retain, use, disclose, or otherwise Process such Customer Personal Data for any purpose other than as necessary to provide Services to Customer, as required by Applicable Laws, as specified in the Agreement, or as necessary to carry out Customer’s documented instructions; (iii) retain, use, disclose or otherwise Process such Customer Personal Data outside of the direct business relationship between the Parties; or (iv) combine such Customer Personal Data with Personal Data it receives or Processes on behalf of other people or entities, or with Personal Data it receives or Processes from its own interaction directly with Data Subjects;
- 3.2.3 will promptly notify Customer if it believes that it cannot follow Customer’s instructions or fulfill its obligations under this DPA, for any reason or because of a legal obligation to which Cerebras is subject, unless Cerebras is prohibited by law from making such notification;
- 3.2.4 will, to the extent required for information to be maintained as “Pseudonymous Data” or a similar term under applicable Data Protection Laws, keep Pseudonymous Data separate from any additional information necessary to make such Pseudonymous Data attributable to a specific Data Subject and subject such Pseudonymous Data to appropriate technical and organizational measures to ensure that it is not attributed to a specific Data Subject;
- 3.2.5 will, to the extent required for information to be maintained as “De-identified Data” or a similar term under applicable Data Protection Laws, (i) take reasonable measures to ensure

- that De-identified Data cannot be associated with a specific Data Subject or household, (ii) publicly commit to maintain the De-identified Data in de-identified form and not attempt to reidentify it, and (iii) contractually commit any Sub-processors to do the same;
- 3.2.6 will promptly inform Customer if Cerebras receives a request from a Data Subject to exercise their rights with respect to their Customer Personal Data under applicable Data Protection Law. Customer will be responsible for responding to such requests or directing the Data Subject to the relevant Third Party End Customer. Cerebras will not respond to such Data Subjects except to acknowledge their requests. Cerebras will provide Customer with commercially reasonable assistance, upon request, to help it to respond to a Data Subject's request;
- 3.2.7 will provide Customer with commercially reasonable assistance in fulfilling its obligations under Data Protection Law, including by (i) deleting any Customer Personal Data in its custody, possession or control upon request by Customer; (ii) implementing appropriate technical and organizational security measures; (iii) assisting the Customer with notifying (if required) a Data Breach to relevant competent authorities and/or individuals; and (iv) assisting the Customer with conducting data protection impact assessments and, if required, consultation with relevant competent authorities; and (v) taking any other actions requested by Customer that are reasonably necessary to enable Customer to comply with its obligations under Data Protection Laws;
- 3.2.8 will, as required by Data Protection Laws, provide notice of any intended changes concerning the addition or replacement of any Sub-processors, thereby giving Customer the opportunity to object to such changes. If the Customer does not object, Cerebras may proceed with the appointment or replacement. The Customer hereby grants Cerebras a general written authorization to engage the Sub-processors set out in Annex I. Cerebras will be liable for the acts or omissions of its Sub-processors to the same extent as Cerebras would be liable if performing the services of the Sub-processor directly under this DPA. Cerebras will require Sub-processors to agree in writing to terms no less protective than the terms in this DPA with respect to Processing of Customer Personal Data, privacy and data security;
- 3.2.9 will without unreasonable delay at the expiration or termination of the Agreement or upon request and election by Customer: (i) return all Customer Personal Data to Customer; or (ii) destroy all such Customer Personal Data, in each case except as required by Applicable Law. For any Customer Personal Data that Cerebras retains after expiration or termination of the Agreement, Cerebras will continue to comply with the data security and privacy provisions in this DPA;
- 3.2.10 will make available to Customer upon Customer's reasonable request information reasonably necessary to demonstrate compliance with Data Protection Law (including without limitation when conducting data protection impact assessments or consultations with data protection authorities) and allow for and contribute to audits, including inspections, conducted by Customer or another auditor mandated by Customer as contemplated by the GDPR or other applicable Data Protection Law. The obligations in this Section 3.2.10 are without limitation to any of Customer's existing audit rights under any applicable agreement between the Parties; and
- 3.2.11 to the extent required by applicable Data Protection Law, and upon reasonable written notice that Customer reasonably believes Cerebras is using Personal Data in violation of applicable Data Protection Law, Customer shall have the right to take reasonable and appropriate steps to help ensure that Cerebras uses the Personal Data in a manner consistent with Customer's obligations under applicable Data Protection Law and to stop

and remediate any unauthorized use of the Personal Data.

4 Details of Processing

- 4.1 General Processing Details.** Unless otherwise specified in an applicable agreement between the Parties, the Personal Data Processing: (i) is ongoing for the duration of the Agreement; and (ii) details are as follows: The Parties agree and acknowledge that the nature and purpose of the Processing, together with the subject matter and the duration of the Processing, the types of Personal Data and categories of Data Subjects and the obligations and rights of Customer, in each case, with respect to the Customer Personal Data Processed by Cerebras, is completely and accurately set forth in Annex I to this DPA.
- 4.2 Unauthorized Processing.** Any Processing of Customer Personal Data by Cerebras that is not authorized by written agreement between the Parties or this DPA is prohibited. Customer can take reasonable and appropriate steps to stop such unauthorized Processing of Customer Personal Data, including without limitation, by ordering Cerebras to immediately cease any such Processing and Cerebras shall cease such processing upon receiving such order.

5 Security and Confidentiality

- 5.1 Data Security Obligations.** Cerebras will implement and maintain commercially reasonable administrative, technical, and physical safeguards, designed to protect the security, confidentiality and integrity of its Systems and all Customer Personal Data. These safeguards shall include, without limitation, safeguards that: (i) are designed, configured, and regularly tested to protect the security of Personal Data and (ii) are designed to prevent and/or mitigate any Data Breach.
- 5.2 Data Breach.**
- 5.2.1 If Cerebras becomes aware that it or its Sub-processors have suffered a Data Breach relating to the Personal Data processed under this DPA, Cerebras shall:
- 5.2.1.1 unless prohibited by Applicable Laws, notify Customer within seventy-two (72) hours upon discovering the Data Breach (and in all cases before making any general public disclosure (e.g., any statement, confirmation, press release or other comment to the press regarding a Data Breach));
- 5.2.1.2 promptly investigate and, to the extent permitted by Applicable Laws, provide Customer with reasonable information about the Data Breach, including a description of the nature of the Data Breach, the approximate number of Data Subjects affected, the Data Breach's current and foreseeable impact, and the measures Cerebras is taking to remediate the Data Breach and mitigate its effects; and
- 5.2.1.3 promptly take all reasonable steps to mitigate the effects of the Data Breach and assist Customer in any efforts to contain, investigate or remediate such Data Breach.
- 5.2.2 Cerebras may not notify any governmental entity, individual, the press, or other third party (other than Cerebras' legal counsel, cyberinsurance provider or other professional advisors that are subject to written obligations of confidentiality no less protective than those set forth herein) about a Data Breach without Customer's prior written consent (such consent not to be unreasonably withheld, conditioned or delayed), unless and to the extent Cerebras is under a legal obligation to do so and: (i) Cerebras makes a commercially reasonable effort to give Customer prior notification; (ii) if it is not possible to give Customer such prior notification (including due to Applicable Laws), notifies Customer promptly once it becomes possible to give notification; and (iii) Cerebras does not identify, directly or indirectly,

Customer in the notification unless and to the extent such identification is required by Applicable Laws.

- 5.3 Confidentiality Obligations.** Cerebras will maintain the confidentiality of Customer Personal Data that it Processes under this DPA, and will require that persons authorized to Process Customer Personal Data are subject to and have committed themselves to written obligations of confidentiality no less protective than those set forth herein or are under an appropriate statutory obligation of confidentiality.

6 Data Protection Obligations and Cooperation.

- 6.1 Third-Party Requests.** If Cerebras receives any type of request or inquiry from a governmental, legislative, judicial, law enforcement, or regulatory authority (e.g., the Federal Trade Commission, the Attorney General of a U.S. state, or a European data protection authority), or faces an actual or potential claim, inquiry, or complaint in connection with Cerebras' Processing of Customer Personal Data (collectively, an "**Inquiry**"), Cerebras will notify Customer without undue delay unless such notification is prohibited by Applicable Law.

7 International Data Transfer

- 7.1** The Parties shall ensure that any transfer of Customer Personal Data hereunder complies with Data Protection Laws and, with respect to any such transfers from the European Economic Area, Switzerland or the United Kingdom to a Third Country the Parties agree that by executing this DPA they also execute Module 1, Module 2 and Module 3 of the Standard Contractual Clauses and the UK Addendum, which are incorporated by reference and form an integral part of this DPA.

- 7.2** The Parties' details, key contacts, categories of Personal Data and Sensitive Personal Data transferred, categories of Data Subjects whose Personal Data is transferred, nature of processing activities, and frequency of transfers are set forth in Annex I to this DPA.

- 7.2.1** For the purposes of the Standard Contractual Clauses, as applicable to Module 1, Module 2 and Module 3:

- 7.2.1.1** Clause 7: The Parties do not adopt the optional docking clause.
- 7.2.1.2** Clause 9: The Parties select Option 2. The time period is 14 days.
- 7.2.1.3** Clause 11(a): The Parties do not select the independent dispute resolution option.
- 7.2.1.4** Clause 17: The Parties select Option 1. The Parties agree that the governing jurisdiction is the Republic of Ireland.
- 7.2.1.5** Clause 18: The Parties agree that the forum is the Republic of Ireland.
- 7.2.1.6** Annex I: Set forth in Exhibit A to this DPA.
- 7.2.1.7** Annex II: The Parties agree that Section 5.1 of this DPA describes the technical and organizational measures applicable to the transfer.
- 7.2.1.8** Annex III: The list of sub-processors are described in Annex I.
- 7.2.1.9** For Personal Data of Data Subjects in the United Kingdom or Switzerland, the Standard Contractual Clauses are adapted to address local law as follows:
 - a. Switzerland
 - i. The Parties adopt the GDPR standard for all data transfers.
 - ii. Clause 13 and Annex I(C): The competent authorities under Clause 13, and in Annex I(C), are the Swiss Federal Data Protection and Information Commissioner and, concurrently, the European Economic Area member state authority identified above.
 - iii. Clause 17: The Parties agree that the governing jurisdiction is Ireland.
 - iv. Clause 18: The Parties agree that the forum is Ireland. The Parties agree to interpret the Standard Contractual Clauses so that Data Subjects in Switzerland are able to sue for their rights in Switzerland in accordance with Clause 18(c).

b. United Kingdom

- i. The Parties agree that the following information is relevant to Tables 1 – 4 of the UK Addendum and that by changing the format and content of the Tables neither Party intends to reduce the Appropriate Safeguards (as defined in the UK Addendum).
 1. Table 1: The Parties' details, key contacts, data subject contacts, signatures and identification as exporter or importer are in Annex I to this DPA.
 2. Table 2: The selected SCCs, Modules and Selected Clauses are described in Section 7.2.1 of the DPA.
 3. Table 3: The list of Parties, description of transfer, and list of sub-processors are described in Annex I to this DPA. The Technical and Organizational measures to ensure the security of the data are described in Section 5.1 of the DPA.
 4. Table 4: Neither Party may end the UK SCC Addendum when the Approved Addendum changes.
- ii. Clause 17 of the Standard Contractual Clauses: The Parties agree that the governing law is English law.
- iii. Clause 18 of the Standard Contractual Clauses: The Parties agree that the forum is the courts of England. The Parties agree that Data Subjects may bring legal proceedings against either Party in the courts of any country in the United Kingdom.

8 General Terms

- 8.1 Termination and Survival.** This DPA can be terminated by written agreement of the Parties. The provisions of this DPA that, by their terms, require performance after the termination or expiration of this DPA, or have application to events that may occur after the termination or expiration of this DPA, will survive the termination or expiration of this DPA, including without limitation, Sections 1-3, 4.2, and 5-8.
- 8.2 Modifications, Additional Agreements and Other Actions.** To the extent that any modifications to this DPA, additional agreements or other actions are necessary in order to ensure that the continued Processing and/or transfer of Personal Data complies with Data Protection Laws, the Parties shall cooperate in good faith to promptly negotiate such modifications or additional agreements or take such other actions.
- 8.3 Governing Law.** This DPA and the performance of all obligations hereunder shall be governed by and construed in accordance with the laws of the State of California (without reference to its choice of laws principles).
- 8.4 No Third-Party Beneficiaries.** To the extent permitted by Applicable Law, this DPA does not create any enforceable rights by anyone other than the Parties.

ANNEX I

A. LIST OF PARTIES

Data exporter(s):

1. Name: As set out in the Agreement

Address: As set out in the Agreement

Contact person's name, position and contact details: As set out in the Agreement

Activities relevant to the data transferred under these Clauses: Processing activities including the collection, storage, accessing, saving, reviewing, reporting and deleting as necessary to support the data exporter, its current and former employees and if applicable, its Third Party End Customers with relevant services.

Signature and date: As set out in the Agreement

Role (controller/processor): Controller (either as the Controller, or acting in the capacity of a Controller, as a Processor, on behalf of another Controller)

Data importer(s):

1. Name: Cerebras Systems Inc.

Address: 1237 E. Arques Ave., Sunnyvale, CA 94085

Contact person's name, position and contact details: General Counsel (privacy@cerebras.ai)

Activities relevant to the data transferred under these Clauses: Processing activities including the collection, storage, accessing, saving, reviewing, reporting and deleting as necessary to support the data exporter, its current and former employees and if applicable, its Third Party End Customers with relevant services.

Signature and date: As set out in the Agreement

Role (controller/processor): Processor (or as a Sub-Processor when the data exporter acts as a Processor on behalf of another Controller)

B. DESCRIPTION OF TRANSFER

Categories of data subjects whose personal data is transferred

- Current and former employees of Customer
- Customers and end users of Customer

Categories of personal data transferred

Current and former employees of Customer

- Names, Addresses, Telephone numbers, Email address, Job titles
- Other personal data contained in emails and associated metadata

Current and former customers and end users of Customer

- IP Addresses
- Any personal data contained in inputs in the training, inference and chatbot Services

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

None

The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis).

Continuous

Nature of the processing

The personal data transferred will be subject to processing activities including the collection, storage, accessing, saving, reviewing, reporting and deleting as necessary to support the data exporter and its current and former employees with relevant services.

Purpose(s) of the data transfer and further processing

The provision of services by the data importer to the data exporter.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period

The personal data are retained so long as the parties continue to maintain a business relationship in connection with the Agreement.

For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing

The subject matter, nature and duration of the processing for transfers to sub-processors is the same subject matter, nature and duration of the processing listed above.

List of subprocessors shall be provided in the following webpage on the Cerebras Trust Center: <https://trust.cerebras.ai/?itemUid=e3fae2ca-94a9-416b-b577-5c90e382df57>. Cerebras will notify updates regarding any sub-processors through the Cerebras Trust Center.

C. COMPETENT SUPERVISORY AUTHORITY

Identify the competent supervisory authority/ies in accordance with Clause 13

Irish Data Protection Commission